

is "appropriate legislation" to protect the rights which the Fourteenth Amendment secures. Cf. *United States v. Raines*, 362 U. S. 17. Still, in this supposed case we would arrive at the question of what Congress could do only after we had determined what it was that Congress had done. So, in the case before us now, we must ask what Congress did in 1871. We must determine what Congress meant by "under color" of enumerated state authority.¹⁶

Congress used that phrase not only in R. S. § 1979, but also in the criminal provisions of § 2 of the First Civil Rights Act of April 9, 1866, 14 Stat. 27, from which is derived the present 18 U. S. C. § 242,¹⁷ and in both cases used it with the same purpose.¹⁸ During the seventy years

¹⁶ The various analyses which have enabled this Court to find state action in situations other than that presented by *Barney v. New York*, 193 U. S. 430, are plainly not appropriate to consideration of the question whether in a given instance official conduct is "under color" of state law. *Nashville, C. & St. L. R. Co. v. Browning*, 310 U. S. 362, and *Iowa-Des Moines Nat'l Bank v. Bennett*, 284 U. S. 239, came here on certiorari from state court proceedings. *Coulter v. Louisville & Nashville R. Co.*, 196 U. S. 599, and *Raymond v. Chicago Traction Co.*, 207 U. S. 20, held that accepted administrative usage in the exercise of a power specifically conferred by state legislation and wholly dependent upon that legislation for its coercive effects might constitute such action of a State as to present a cognizable federal question. But see *Memphis v. Cumberland Tel. & Tel. Co.*, 218 U. S. 624. Similarly, *Home Tel. & Tel. Co. v. Los Angeles*, 227 U. S. 278, held that the existence in a state constitution of provisions coincident with those of the Federal Constitution did not *ipso facto* immunize state officials from the original jurisdiction of the federal courts. From none of these cases is implication to be drawn pertinent to the interpretation of § 1979.

¹⁷ See note 5, *supra*.

¹⁸ Mr. Shellabarger, Chairman of the House Select Committee which authored the Act of April 20, 1871, whose first section is now § 1979, reported to the House that that section was modeled upon the second section of the Act of April 9, 1866, 14 Stat. 27, and that the two sections were intended to cover the same cases, with qualifica-